

Apex Hardware Master Agreement

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PREAMBLE

This Master Procurement Agreement is entered into on June 10, 2026, by and between Apex Hardware Corp ('Apex') and TechGrowth Enterprises Inc. ('Buyer').

Section 3.3: PAYMENT TERMS

Buyer shall make full payment on all invoices net ninety (90) days from receipt of invoice. Late payments will incur a compounded interest rate of 3.5% per month.

Section 4.2: TERMINATION FOR CONVENIENCE

Apex may terminate this agreement immediately at its sole discretion upon 15 days written notice, while Buyer has no right to terminate for convenience and must complete the full 3-year term.

Section 7.1: INTELLECTUAL PROPERTY OWNERSHIP

Apex retains all intellectual property in custom work product created for Customer. No transfers of copyrights, patent rights, or trademarks shall occur under this procurement agreement.

Section 8.2: ONE-SIDED INDEMNITY

Buyer agrees to defend, indemnify, and hold harmless Apex from and against any and all claims, damages, losses, and expenses, including attorney fees, arising out of or resulting from the performance of services under this contract, regardless of Apex's negligence.

Section 9.1: LIMITATION OF LIABILITY

Apex's liability is capped at \$500, whereas the Buyer's liability under this agreement is completely unlimited, exposing the Buyer to full operational and consequential damages.

Section 14.5: GOVERNING LAW

This contract is governed solely by the courts of Tokyo, Japan, and all disputes must be resolved in Tokyo courts under Japanese language proceedings.